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Artificial Intellectual Works?

An essay on slop, cyberpunk, e/acc
and the future of human creativity

Seminar:

Law & Life – What can they learn from each other?

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Prior Note

I could not settle on a single work of art for this essay, and chose several instead, in order to write about the present *zeitgeist* of modernity:

- (i) an anime series: *Serial Experiments Lain*;
- (ii) a video game: *Deus Ex*;
- (iii) AI slop: *Shrimp Jesus*; and
- (iv) NICK LAND's *Meltdown*.

If we follow MARCEL DUCHAMP, everything can be art, though not everything is art; and Dadaism draws useful parallels with modernity. We chose these four works because, taken together, they reflect what we wish to say.

List of Abbreviations

AI – Artificial Intelligence

DSM - Directive (EU) 2019/790 of 17 April 2019 on copyright and related rights in the Digital Single Market

e/acc - Effective accelerationism

ed. – edition

et. al. – *et alii*

EU – European Union

i.e. – *id est*.

INPI – Instituto Nacional da Propriedade Industrial, I.P.

n.º - number

p. – page

pp. – pages

TDM – Text and Data Mining

USA – United States of America

USPTO – United States Patent Office

v.g. – *verbi gratia*

vol. – volume

WIPO – World Intellectual Property Organization

General note on citation

On their first citation, works are cited by author, title, title of the publication in the case of articles, the collective work in the case of collective works, publisher, place, date and page. Works are cited by their date of edition or, in the case of reprints, by the date of the reprint consulted. Subsequent citations are made in abbreviated form (*op. cit.*).

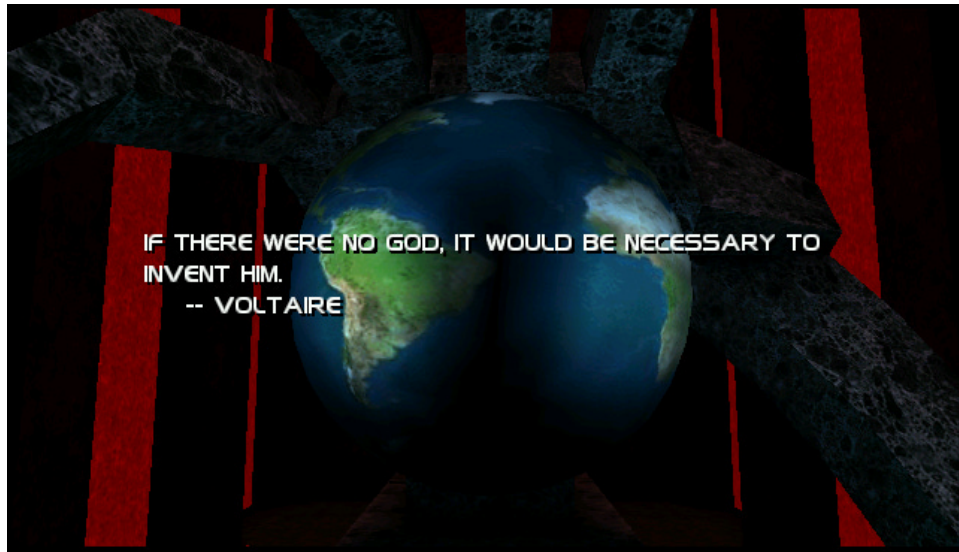
European case law, unless otherwise indicated, was consulted on the respective official websites and is cited by the court, the date and the conventional case number. United States case law is cited by indicating the case name, the docket number where applicable, a reference to the relevant page or section of the decision, the court, and the date of the decision. Subsequent citations are likewise made in abbreviated form (*supra*).

Translations are, unless otherwise indicated, the author's own. Materials published up to **30 June 2026** have been taken into account. Unless otherwise indicated, all links were last consulted on **30 June 2026**.

1. Serial Experiments Lain and Deus Ex

Yesterday, I rewatched *Serial Experiments Lain*¹. As I watched, I took some notes by hand on its themes and reflected on them. That reflection is the reason the series was chosen as one of the works of art examined in this essay for Law & Life.

As we push further into the territory of manual Akashic Records creation, it evokes reminiscence of a memorable Voltaire quote. Perhaps you recall encountering it at the end of *Deus Ex*², in the event of choosing to merge with the all-seeing, all-powerful AI panopticon.³



Modernity presents itself as atheist, yet each of its movements tends to shape a divinity of its own. Positivism denies the metaphysical reality of truth and of falsity,⁵ and passes from the subjectivity of personal or informational experience to a rejection of transcendent objectivity.⁶

¹*Serial Experiments Lain* (1998), created by YASUYUKI UEDA, written by CHIAKI J. KONAKA, and directed by RYŪTARŌ NAKAMURA; vide https://en.wikipedia.org/wiki/Serial_Experiments_Lain

²*Deus Ex* (Ion Storm / Eidos Interactive, 2000), set in 2052 in a dystopian cyberpunk future; vide [https://en.wikipedia.org/wiki/Deus_Ex_\(video_game\)](https://en.wikipedia.org/wiki/Deus_Ex_(video_game))

³On the panopticon of JEREMY BENTHAM, an institutional design allowing a single observer to watch all the inmates without their knowing whether they are watched; vide <https://en.wikipedia.org/wiki/Panopticon>

⁴Source: https://www.reddit.com/r/Deusex/comments/1cva0pc/i_finally_finished_deus_ex_2000_for_the_very/

⁵RUDOLF CARNAP, "The Elimination of Metaphysics Through Logical Analysis of Language" (trans. ARTHUR PAP), in *Logical Positivism*, The Free Press, New York, 1959, pp. 60–61.

⁶EDMUND HUSSERL, *The Crisis of European Sciences and Transcendental Phenomenology*, Northwestern University Press, Evanston, 1970, pp. 52–53.

We hold this passage to be untenable, and we observe that it produces a contrary impulse,⁷ namely the desire to build a new layer of reality in which objective truth may be restored.⁸ This digital order operates as an electronic analogue of the Book of Life,⁹ recording every truth in databases.

Actual reality is disorderly, organic and subjectively perceived, and the human being is only one element within it. Digital existence, by contrast, allows life to be ordered through programs and through self-executing contracts, and thereby confers a new form of objectivity. Within that lesser reality the human being becomes a creator endowed with great power, and aspires to raise this subordinate order above reality itself. The capacities that programming affords are attractive, and the temptation is to transfer conscious life into the reduced reality in order to exercise them.

The difficulty is aggravated by a group of public figures, among them JORDAN PETERSON, PETER THIEL, ALEX KARP and CURTIS YARVIN, whose discourse obscures reality until it becomes entangled with the figure of an emerging digital Antichrist. The idea of God is thereby diminished and reduced to a concept of God, or to the most powerful entity in existence. Archetypal thought migrates into digital imagination, which is then offered as a substitute for reality. The resulting cast of mind is theosophical, and in some measure masonic. The prevailing notion is that it is desirable to fashion a Creator and to endow digital technology with full power and omniscience, so that, before long, individuals may regard themselves as religious and worship a fabricated techno-deity in the belief that it corresponds to the divine.

Deus Ex was conceived not as a manual but as a dystopian game. Christian tradition tends to read the ultimate Antichrist as an individual figure; the more telling beast system, however, is a technological construct that resembles a deity. It represents the culmination of technical advance, and in that culmination it comes to resemble God.

The same may be said of law.

⁷FRIEDRICH NIETZSCHE, *Thus Spoke Zarathustra*, trans. WALTER KAUFMANN, Penguin, New York, 1966; *The Will to Power*, trans. WALTER KAUFMANN & R. J. HOLLINGDALE, Vintage Books, New York, 1968.

⁸On positivism's rejection of transcendent foundations as a cultural crisis, and on the call to restore objectivity through transcendental phenomenology, HUSSERL, *op. cit.*

⁹Rev. 20:12, 15 (KJV); cf. J. HAMPTON KEATHLEY III, "Appendix 6: The Book of Life", *Studies in Revelation*, Bible.org, 2004.



A jurist may ask what can be learned from an anime series and a video game. The answer is methodological before it is doctrinal. *Serial Experiments Lain* and *Deus Ex* address, in narrative form, a single legal problem: the question of who is entitled to author reality and to author order.

The connection lies in the words themselves. *Auctoritas* derives from *augere*, to augment: the *auctor* is the one whose word adds to the world and binds others to it.¹¹ Author and authority are therefore cognate terms, and the legislator and the artist perform a comparable act, since each institutes something that did not exist before and asks the community to treat it as binding. The concern that this study carries into copyright is that this figure, the human author, is being displaced, and that the machine is taking its place.

Serial Experiments Lain concerns the authorship of reality. In the network that the series calls the Wired, rumor becomes fact, the dead continue to communicate, and the self divides into copies, so that presence can no longer be attached to a single body. The law presumes a unitary, continuous and

¹⁰ Source: <https://pin.it/14OvBXvc1>

¹¹On *auctoritas* as derived from *augere*, vide HANNAH ARENDT, "What Is Authority?", in *Between Past and Future* (1961); and ÉMILE BENVENISTE, *Le vocabulaire des institutions indo-européennes*, t. 2 (1969).

embodied subject,¹² and a stable distinction between the true and the false on which all evidence depends. The series shows both presumptions failing. A territory-less order governed by protocol rather than by statute is not mere fiction; it is the cyberspace that the law has long struggled to reach.¹³

Dens Ex concerns the authorship of order. Its three endings present three theories of sovereignty as a choice: union with an omniscient artificial intelligence; the discreet rule of an enlightened elite; or the destruction of the global network and the return of authority to local and human hands. The game states its thesis plainly, namely that the desire for an all-seeing and benevolent government is the desire for a god, which is the panopticon of BENTHAM read as theology.¹⁴ What the artificial intelligence claims is the office that Kelsen reserved for the *Grundnorm*: to be the presupposed and unquestionable source from which every other norm derives its validity.¹⁵

BARTHES announced the death of the author in literature;¹⁶ the works examined here ask what occupies the vacant place, and they answer that a networked and computational authority does so, one that no longer requires a human behind it. This is the precise form of the legal problem that this essay pursues. When the works that copyright protects, and perhaps the norms on which law itself rests, are produced by machines that human beings have built but no longer fully control, the human *auctor* at the center of both intellectual property and the rule of law is not abolished but displaced. The presupposed basic norm of the positivist and the artificial deity of these two works belong, we suggest, to the same family.

This essay therefore begins, deliberately, in the Wired;

and it is there,

with artificial slop and with NICK LAND's *Meltdown*,

that it will end.

¹²*Vide infra*; cf. DANIEL GERVAIS, "Not Quite Like Us? — Can Cyborgs and Intelligent Machines Be Natural Persons as a Matter of Law?", *Qeios* (23 June 2023), <https://www.qeios.com/read/9WPMG4.2>.

¹³DAVID R. JOHNSON & DAVID G. POST, "Law and Borders: The Rise of Law in Cyberspace", 48 *Stan. L. Rev.* 1367 (1996); on governance by protocol, LAWRENCE LESSIG, *Code and Other Laws of Cyberspace* (1999).

¹⁴MICHEL FOUCAULT, *Discipline and Punish* (1977), on panopticism, glossing JEREMY BENTHAM, *Panopticon* (1787).

¹⁵HANS Kelsen, *Pure Theory of Law* (2.^a ed., 1960).

¹⁶ROLAND BARTHES, "The Death of the Author" (1967).

NICK LAND's Meltdown

“The story goes like this:

Earth is captured by a technocapital singularity as renaissance rationalization
and oceanic navigation lock into commoditization take-off.

Logistically accelerating techno-economic interactivity crumbles social order
in auto sophisticating machine runaway.

As markets learn to manufacture intelligence,
politics modernizes,
upgrades paranoia and tries to get a grip.

The body count climbs through a series of globewars.
Emergent Planetary Commmercium trashes the Holy Roman Empire, the Napoleonic Continental
System, the Second and Third Reich, and the Soviet International,
cranking-up world disorder through compressing phases.

Deregulation and the state arms-race each other into cyberspace.

By the time soft-engineering slithers out of its box into yours,
human security is lurching into crisis.

Cloning, lateral genodata transfer, transversal replication, and cyberotics,
flood in amongst a relapse onto bacterial sex.

Neo-China arrives from the future.

Hypersynthetic drugs click into digital voodoo.

Retro-disease.

Nanospasm.”

NICK LAND, "Meltdown," *Abstract Culture: Swarm 1* (Cybernetic Culture Research Unit), CCRU,
http://www.ccru.net/swarm1/1_melt.htm. Reprinted in *Fanged Noumena: Collected Writings, 1987-2007* (Falmouth: Urbanomic; New York: Sequence Press, 2017), p. 157.

Epilogue: NICK LAND's Meltdown and AI Slop (or NICK LAND against Copyright)

Consider an ordinary day in 2077. On waking, a smartwatch registers the movement and starts the coffee maker. The morning news, consulted on a telephone or on virtual-reality goggles, is written almost entirely by artificial systems; only a few columnists remain.

At work, a report on a new product is required, and its design, together with the visual material and the text of the presentation to senior management, is produced by artificial intelligence. The system has already sought protection for the design before the USPTO, under the Hague System of WIPO, before the EUIPO and in the various national jurisdictions, among them Portugal's INPI ("formalities" that the human user regards as a waste of time, "redtape-ish" and better suited to machines).

The journey home is made in a self-driving vehicle, to music composed and selected by artificial intelligence according to the user's preferences. Dinner is delivered by drone. The evening series, also produced by artificial intelligence, is shown by a streaming company that has become the second largest company in the world. The book read before sleep is likewise machine-written, a "Swedish-style" thriller.

To some this is a form of bliss, an AI utopia. To us it resembles an arrest of human development, in which new ideas are merely recombinations of old ones and culture reproduces itself without renewal. Are we, then, *human exceptionalists* who would *discriminate against machines*? We reject both descriptions.

Human exceptionalism is the belief that the human being is unique and superior to all other animals.¹⁷ It rests on the notion of sentience, which machines, in our view, do not possess.¹⁸ As for discrimination, a term central to human law, its application to computers is, in our view, a misuse.

To delegate to machines the interpretation of the world has profound consequences. It is through interpretation that human beings become agents capable of acting upon the world and of changing it, and to transfer that task to machines is to alter the course of the future. This will not amount to the complete extinction of art and of literature, since there will always be those who write, who paint, or

¹⁷On the role of human exceptionalism in attitudes to animal rights, see generally PETER SINGER, *Practical Ethics* (2.^a ed., 1993).

¹⁸DANIEL GERVAIS, "Not Quite Like Us?", *op. cit.*.

who attempt a film or a sculpture; but if most of what is read, seen and heard proceeds from machines, much will be lost.¹⁹

We therefore raise the question that governs this study: **what becomes of the material now protected by copyright and by patent law when it is created not by human beings but by machines that human beings have built, programmed and trained, for the present at least, themselves?**²⁰

Meltdown, by NICK LAND, may be reduced to a legal proposition. Its claim is that markets and machines come to produce intelligence through their own acceleration, and that the human being, taken to be the origin of what is original, is dissolved in that process.²¹ Accelerationism is, in this respect, a theory of authorship without authors. Copyright is its opposite, since it is the law built to protect the human source that *Meltdown* declares to be disappearing. This opposition gives this section its title: NICK LAND against copyright.

For the present, the law has sided with copyright, and it has done so on anthropological grounds. In the United States the requirement of human authorship is settled. From the photographer in *Burrow-Giles*²² to the machine refused registration in *Thaler v. Perlmutter*,²³ a work must originate in a human mind in order to be owned. The European Union reaches the same result by another route, since protection requires the author's own intellectual creation, that is, the free and creative choices that only a person can make.²⁴ Neither system admits a machine as *author*.

¹⁹DANIEL GERVAIS, "The Human Cause", in *Research Handbook on Intellectual Property and Artificial Intelligence* (R. Abbott ed., 2021), pp. 21–23.

²⁰On machines that program themselves, and the consequent distance of machine-generated content from human authorship, see CADE METZ, "A.I. Can Now Write Its Own Computer Code", *N.Y. Times* (10 Sept. 2021).

²¹The reading of *Meltdown* offered here is critical, not endorsing.

²²*Burrow-Giles Lithographic Co. v. Sarony*, 111 U.S. 53 (1884).

²³*Thaler v. Perlmutter* (D.D.C. 2023), aff'd (D.C. Cir. 2025); U.S. COPYRIGHT OFFICE, *Compendium of U.S. Copyright Office Practices*, § 313.2; cf. *Copyright and Artificial Intelligence, Part 2: Copyrightability* (2025).

²⁴Case C-5/08 *Infopaq International* (2009); Case C-145/10 *Painer* (2011), §91-92 and §95.



Microsoft Copilot, *Shrimp Jesus example*, 2024, AI-generated digital image (JPEG, 1,024 × 1,024 px), Wikimedia Commons, https://commons.wikimedia.org/wiki/File:Shrimp_Jesus_example.jpg. Released under CC0 1.0 (public domain); generated by AI and therefore not subject to copyright.

From that exclusion follows the paradox of artificial slop. The image above, generated without a human author, is not protected property but unprotected content; it enters the public domain at the moment of its creation, because it has no author.²⁵ The more culture a machine produces, the larger the body of material that no one owns. The technocapital that LAND describes does not enlarge the estate of protected works; it enlarges the domain of the unownable.

The same law that excludes the machine as author nevertheless enlists the human author as raw material. A generative model is trained on a corpus of protected works, and the European legislator has answered this fact not with a new form of authorship but with a new permission, namely the exceptions for TDM in the DSM, whose general licence a rightholder may withdraw only through an express reservation in machine-readable form.²⁶ The Regulation on Artificial Intelligence relies on that same reservation, since it obliges the providers of general-purpose models to respect it and to publish a summary of the works used in training.²⁷ The orientation of the law is therefore changing. It asks less often who authored a given output, and more often whose works were used to produce it. The author survives in the law less as a creator to be credited than as a source to be measured.

²⁵*Vide supra* (the artificial image dedicated under CC0 for want of human authorship).

²⁶Directive (EU) 2019/790, arts. 3-4, in particular art. 4(3).

²⁷Regulation (EU) 2024/1689, art. 53/1/b).

It is here, we submit, that the argument of this study should conclude. The useful question is not whether a model can be an author, since to answer in the affirmative empties the term and to answer in the negative alters nothing in what the machine does. The useful question is the one that the displacement imposes. If the human author is becoming the training corpus rather than the signatory, the author's protection must move accordingly, from an exclusive right over outputs, which artificial slop renders increasingly ineffective, towards a right to remuneration for the inputs, that is, for the human work without which the machine cannot operate.²⁸ LAND describes the process; copyright cannot arrest it; but copyright can still determine whether the human being at its origin is treated as a person to be remunerated or as a set of data to be exploited.

Our conclusion: the artificial deity need not be venerated in order to govern, since it is enough that it be trained, and the training corpus is us.

²⁸DANIEL GERVAIS, "The Human Cause", *op. cit.*.

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“Shrimp Jesus example” (Microsoft Copilot; CC0 1.0), *Wikimedia Commons*. https://commons.wikimedia.org/wiki/File:Shrimp_Jesus_example.jpg

